

Amendment No. 1 to HB2029

Terry
Signature of Sponsor

AMEND Senate Bill No. 2579

House Bill No. 2029*

by deleting subdivision (a)(8) from § 63-25-107 in SECTION 2 and substituting:

(8) Require all Tennessee-licensed dietitians and nutritionists who participate in the Dietitian Licensure Compact and all applicants for licensure as a dietitian or nutritionist to submit to a fingerprint-based criminal history record check to be conducted by the Tennessee bureau of investigation, and a fingerprint-based national criminal history record check to be completed by the federal bureau of investigation, with:

(A) The results being submitted to the commissioner of health, or the commissioner's designee, as long as the designee is an employee of the department of health; and

(B) The applicant being responsible for any fees associated with the criminal history record check.

AND FURTHER AMEND by deleting subsection (b) from § 63-25-107 in SECTION 2, and by deleting the designator "(a)" from current subsection (a).

AND FURTHER AMEND by inserting the following immediately preceding the existing subsection (d) of § 63-25-108 in SECTION 2 as a new subsection (d), and redesignating the existing subsection (d) as subsection (e):

(d) An applicant for licensure as a dietitian or nutritionist must submit to a fingerprint-based criminal history record check to be conducted by the Tennessee bureau of investigation, and a fingerprint-based national criminal history record check to be completed by the federal bureau of investigation, with:

(1) The results being submitted to the commissioner of health, or the commissioner's designee, as long as the designee is an employee of the department of health; and

(2) The applicant being responsible for any fees associated with the criminal history record check.

AND FURTHER AMEND by deleting "or" at the end of § 63-25-104(d)(9)(C) in SECTION 2.

AND FURTHER AMEND by deleting the period at the end of § 63-25-104(d)(10)(C) in SECTION 2 and substituting "; or".

AND FURTHER AMEND by adding the following as a new subdivision under § 63-25-104(d) in SECTION 2:

(11) The dissemination of general non-medical nutrition information, dietary education, or public health information provided orally, in writing, digitally, or through electronic media when such information does not constitute individualized medical nutrition therapy.

AND FURTHER AMEND by deleting "June 30, 2026" wherever it appears in § 63-25-106(b)(1) in SECTION 2 and substituting "December 31, 2026".

AND FURTHER AMEND by deleting "July 1, 2026" wherever it appears in § 63-25-108(e) in SECTION 2 and substituting "January 1, 2027".

AND FURTHER AMEND by deleting § 63-25-115 in SECTION 2 and substituting:

63-25-115. Rules.

The board is authorized to promulgate rules, including emergency rules if necessary, to effectuate this chapter. The rules must be promulgated in accordance with the Uniform Administrative Procedures Act, compiled in title 4, chapter 5.

AND FURTHER AMEND by deleting "July 1, 2026" in SECTION 4 and substituting "January 1, 2027".